

Inspection Demand No. 19: “Produce all DOCUMENTS and ESI evidencing any medical treatment, assessment, examination or care that YOU received from five years prior to the INCIDENT to the date of YOUR responses herein.”

Denied. This request is overbroad and invades Plaintiff’s right to privacy in his medical records.

Defendant’s request for sanctions is DENIED.

2. CU0002030 TITLE, JERRY V. SAVALIN, RICK DAWSON ET AL

Gregory Gerald Callison is to appear for his examination as previously scheduled at 10:00 am on 7/24/2026 in Dept. 6 of the Nevada County Superior Court.

3. CU001323 SHIRLEY, RYAN VS. DYNASTY VALLEY, LLC

Motion to Approve PAGA settlement

BACKGROUND:

The parties have reached a settlement agreement of this PAGA action. There are approximately 460 Aggrieved employees who worked 10,425 PAGA Pay Periods. (Motion to Approve PAGA Settlement, p. 5:12-13.) The agreement allocates \$200,000.00, to pay individual PAGA payments, PAGA counsel’s attorneys’ fees, PAGA Litigation Expenses, a Service Award to Plaintiff and Administration Expenses. (Motion, p. 5:15-19.) After these deductions, the PAGA civil penalties will be divided 75% to the LWDA and 25% to the Aggrieved Employees. (Motion, p. 5:19-22.)

The parties are asking the Court to approve a Service Award to Plaintiff of \$10,000. (Motion, p. 6:5-8.) Plaintiff’s counsel is asking for 1/3 of the award as attorneys’ fees (\$66,666.67) and \$13,432.15 in Litigation Expenses. (Motion, p. 6:9-18.) They are also asking for up to \$5,950.00 in Administration Expenses. (Motion, p. 6:19-22.)

The parties claim that the “Settlement of \$200,000.00 penalizes Defendant for the alleged violations of California’s labor laws in an amount significant enough to deter alleged violations and provide genuine and meaningful relief.” (Motion, p. 10:13-15.) The also note that the \$200,000 settlement “represents approximately 19.2% of the non-stacking maximum penalty of \$1,042,500.00” which according to the parties is reasonable in light of the risks of going to trial. (Motion, p. 15:26-28.) Plaintiff also states that their experts have calculated Defendant’s maximum exposure at \$3,932,400.00. (Motion, p. 16:21.)

The parties state that “[i]n the context of mediation, Defendant represented through its counsel that it has experienced material financial difficulties that constrain its ability to fund a substantially larger settlement.” (Motion, p. 18:4-7.)

The parties also agree that Plaintiff's counsel's attorneys' fees are "fair and reasonable" and that Plaintiff's counsel "spent hours in prosecuting this action." (Motion, p. 18:23; p. 21:26.)

ANALYSIS:

The Court has various concerns about the proposed PAGA settlement.

1. It is not clear to the Court how much each Aggrieved Employee will receive from the proposed settlement. It appears that approximately 50% of the recovery will be devoted to individual PAGA payments, PAGA counsel's attorneys' fees, PAGA Litigation Expenses, a Service Award to Plaintiff and Administration Expenses.

2. The Court would like to know what are the maximum and minimum amounts to be received by the Aggrieved Employees, as well as the median and mean amounts to be received by the Aggrieved Employees.

3. It is not clear to the Court why Plaintiff should receive a Service Award of \$10,000. How much time did the Plaintiff devote to this case? Was Plaintiff deposed? How was the Service Award determined? How much additional compensation has Plaintiff received? (See Motion, p. 5:2-5.)

4. Although the proposed settlement amount of \$200,000 "represents approximately 19.2% of the non-stacking maximum penalty of \$1,042,500.00," the parties indicate that plaintiff's experts have calculated that Defendant's maximum stacking exposure would be \$3,932,400. The \$200,000 settlement is barely 5% of Defendant's maximum exposure. Is this fair and reasonable?

5. The parties state that "[i]n the context of mediation, Defendant represented through its counsel that it has experienced material financial difficulties that constrain its ability to fund a substantially larger settlement." (Motion, p. 18:4-7.) This statement seems to hide more than it reveals. The statement from defendant's counsel that defendant is having financial difficulties is mere hearsay; has this been confirmed by Plaintiff's counsel? Further, there is no indication in the Motion of defendant's current financial condition. What were defendant's gross and net earnings, profits, etc. during the past couple of years?

CONCLUSION:

Before the Court can approve this PAGA settlement, it would need to have the above questions answered. The Court continues the hearing on this motion until August 28, 2026 at 10:00 am in Dept. 6 for further briefing on this matter. Any additional briefs and/or declarations are to be filed at least 10 court days prior to the hearing.

4. CU0001696 WATSON, GEORGE vs. GENERAL MOTORS, LLC

The Court recuses itself from this case. The case is continued until July 31, 2026, at 10:00 am in Dept. 6.